

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

**In re: ADAM STARK
License No. 068.0000681**

Docket No. 2021-103

**DECISION ON REQUEST FOR
SUMMARY SUSPENSION ORDER**

Appearances:

Prosecuting Attorney: Jennifer B. Colin, Esq.
Respondent Adam Stark did not appear¹

Board of Allied Mental Health Practitioners:

Tammy Austin, professional member, Chair
Ellen Grimes, public member (ad hoc)
Lynn Irwin, professional member
Carol Smith, professional member

Presiding Officer:

Michael S. Kupersmith, Administrative Law Officer

Introduction

This matter came before the Board of Allied Mental Health practitioners on the State's Request for Summary Suspension. The hearing was held on September 16, 2021 and was conducted remotely pursuant to the Emergency Rules for Remote Hearings adopted by the Office of Professional Regulation. Jennifer B. Colin, Esq., represented the Office of Professional Regulation (OPR). Respondent Adam Stark did not appear. The Board of Allied Mental Health Practitioners has authority to summarily suspend a license pending further action if the Board determines that public health, safety, or welfare imperatively require emergency action. See 3 V.S.A. § 814(c).

¹ Attorney Colin advised the Board that Respondent Stark had recently sent her an email advising that he had been hospitalized after suffering a heart attack. However, Mr. Stark did not request a continuance of the summary suspension hearing from either Ms. Colin or the Docket Clerk.

Findings of Fact

After hearing, the Board finds the following facts have been proved by a preponderance of the evidence.

1. Respondent Adam Stark is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor (LCMHC) under license number 068.0000681. The license was originally issued on January 19, 2006 and expires on January 23, 2021.
2. During all relevant times, Respondent Stark maintained an independent counseling practice under the name "Open Circle Counseling" in Brattleboro, Vermont.
3. On August 16, 2021, Respondent wrote a letter using his office letterhead to a New Hampshire public defender who was representing a female client, C.R., in connection with criminal charges pending in New Hampshire. The letter was admitted into evidence as exhibit 1. According to the letter, C.R. was a client of the Respondent.
4. Exhibit 1 reads in pertinent part as follows:

I am writing on behalf of [C.R.], whom I have come to know through her work in counseling and psychotherapy with me, which began 06/14/2021 and continued through 8/06/2021.

During this time, I have been treating her for Depression, Anxiety, Post-traumatic Stress, and Substance Abuse—Heroin and cocaine. Her attendance and participation in therapy has been positive. Her progress has been slight as she relapsed, and was arrested. I have been working on getting her into Habit Opco for methadone maintenance. She is motivated and has some college, but mostly she has indicated she wants to continue counseling and psychotherapy with me upon her release from incarceration. We have also arranged for transportation to court as needed.

* * *

The letter is signed "Adam Stark, MA LCMHC LADC"

5. On or about August 9, 2021, C.R. was arrested in the Commonwealth of Massachusetts on a warrant issued by New Hampshire. She was brought to a Massachusetts court where bail was set at \$5000.00. On August 12, Respondent posted the \$5000.00 bail and signed the bail receipt. See exhibit

2, page 5. C.R. was released from jail in Massachusetts with the condition that she "report to New Hampshire authorities by 9:00 a.m. on 8/13/21." See exhibit 2.

6. When Respondent posted bail, he was advised that if C.R. missed any court appearances the bail might be forfeited. Exhibit 2, page 5.
7. C.R. reported to the Cheshire New Hampshire House of Corrections on or about August 13. During the course of her incarceration there, she had several telephone conversations with the Respondent. The calls were recorded by the facility. In the course of his investigation of a complaint against the Respondent, OPR investigator Marsello D'Alessandro obtained copies of the recordings and listened to them.
8. During the first recorded call on August 15, Respondent and C.R. each said, "I love you." to the other. Respondent called C.R., "Sweetie." C.R. asked Respondent to "keep my stuff secure in a safe place."
9. In a subsequent call, Respondent explained to C.R. that he would have to go to Massachusetts to retrieve the bail he had posted there so that he could post bail for her in New Hampshire. They discussed how Respondent would pick her up at the jail and that they would go swimming afterwards. Respondent asked C.R. for her swimsuit size so that he could purchase one for her.
10. During one conversation, C.R. asked the Respondent if there would be any problem with him bailing her out of jail. At a court hearing which took place during C.R.'s confinement, the judge had apparently expressed doubt that Respondent, as C.R.'s counselor, could bail her out. Respondent and C.R. then discussed having a friend of C.R. use Respondent's money to post her bail.
11. In the course of his investigation, Mr. D'Alessandro wanted to speak with the Respondent and so contacted the attorney who was representing the Respondent on other pending OPR cases. He advised the attorney that he was investigating reports about Respondent's relationship with C.R. Specifically, he was concerned about Respondent's posting bail and about a possible sexual relationship.
12. The attorney apparently reported the conversation to the Respondent because the following day Respondent spoke about the contact to C.R. C.R.

became emotionally upset when she heard about the subject matter of the investigation. Respondent assured C.R. that his posting bail was not a problem. C.R. stated that the two had not engaged in sex; Mr. Stark did not respond.

13. As of September 16, Mr. D'Alessandro did not know whether or not Respondent had posted bail for C.R. in New Hampshire.
14. Exhibit 4, the American Counseling Association Code of Ethics was admitted into evidence. Rule 6.6 of the Administrative Rules of the Board of Allied Mental Health Practitioners provides that the ethical code of the American Counseling Association (ACA) establishes the standard of practice and fitness for Allied Mental Health Professionals.

Conclusions of Law

The Findings of Fact and Conclusions of Law in this Summary Suspension Order are for the purpose of deciding whether *at this time* there is an imperative need to take emergency action. See 3 V.S.A. § 814(c). The Findings of Fact and Conclusions of Law herein are for the purposes of this Order only.

The evidence clearly shows that Mr. Stark entered into a relationship with his client, C.R., that was inappropriate and was incompatible with his role as her counselor and psychotherapist. It is reasonable to infer from the evidence that the relationship between Respondent and client was sexual in nature, but even if not sexual, there was clearly an emotional intimacy that was inharmonious with Respondent's professional responsibilities. Salient points of evidence relied on by the Board are as follows:

- Respondent told client that he loved her and called her "Sweetie."
- Respondent posted \$5000.00 bail to have client released from jail in Massachusetts knowing that the money could be forfeited if the client failed to appear in court.
- Respondent and client conspired to circumvent a possible court ruling that could have prevented him from posting bail in New Hampshire.
- Respondent agreed to keep client's "stuff" safe while she was incarcerated.
- Respondent volunteered to purchase a swimsuit for client so she could go swimming with him after he bailed her out of jail.
- Respondent wrote a professional letter on behalf of client to client's criminal defense lawyer, presumably to be used in connection with a criminal case. Respondent failed to disclose his personal relationship with client in the letter.

- Client became emotionally upset when she learned from Respondent that he was being investigated for a possible sexual relationship with her.

In its Request for Summary Suspension, the State alleged five violations of Vermont law which justify immediate suspension of Respondent's license. The Board will consider each of the purported violations in turn.

Violation One: 26 V.S.A. § 3271(a)(4) Entering into an additional relationship with a client that might impair the licensed mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations.

Respondent's relationship with C.R. made it impossible for him to maintain an objective role as C.R.'s counselor and psychotherapist. Furthermore, when a counselor undertakes the responsibility of providing a professional opinion about a client to a third party, he has an obligation to the third party as well as to the client to provide an opinion that reflects an objective evaluation conducted and compiled to the best of his ability. It is impossible to present a bias-free evaluation under the circumstances proven here.

Violation Two: 3 V.S.A. § 129a(a)(26) Failing to maintain professional boundaries.

The evidence shows clearly that the Respondent failed to maintain proper professional boundaries with C.R. Respondent effectively inserted himself into the private life of his client. Instead of maintaining professional distance and objectivity, he became intertwined in her emotional and functional issues. In other words, in forming an emotional relationship with his client, he exposed her to a substantial risk of creating or exasperating psychological problems that he was professionally responsible for ameliorating.

Violation Three: 3 V.S.A. § 129a(b)(1) Failure to practice competently [by] performance of unsafe or unacceptable patient care.

By developing an intimate, emotional relationship with C.R., Respondent clearly engaged in unacceptable patient care.

As an individual who struggles with substance abuse, C.R. is clearly a vulnerable individual. By engaging in an emotional relationship with C.R., Respondent deprived her of the disinterested, professional care that she required.

Violation Four: 3 V.S.A. § 129a(b)(2) Failure to practice competently [by] failure to conform to the essential standards of acceptable and prevailing practice.

Standard A.5.a of the ACA Code of Ethics provides:

Sexual and/or romantic counselor– client interactions or relationships with current clients, their romantic partners, or their family members are prohibited. . . .

Even if the relationship between Respondent and C.R. was not sexual, it was a romantic relationship which ran afoul of Standard A.5.a of the ACA Code.

Standard A.6.b of the ACA Code of Ethics provides:

Counselors consider the risks and benefits of extending current counseling relationships beyond conventional parameters. Examples include attending a client's formal ceremony (e.g., a wedding/commitment ceremony or graduation), purchasing a service or product provided by a client (excepting unrestricted bartering), and visiting a client's ill family member in the hospital. In extending these boundaries, counselors take appropriate professional precautions such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired and no harm occurs.

The Respondent failed to heed the requirements of Standard A.6.b.

Standard A.1.a provides:

The primary responsibility of counselors is to respect the dignity and promote the welfare of clients.

By definition, Respondent could not "promote the welfare" of C.R. by engaging in an emotional relationship with her while purporting to treat her.

Violation Five: 3 V.S.A. § 129a(a)(15) Failure to exercise independent judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession,

Engaging in an emotional relationship with a client constitutes a gross failure to exercise independent professional judgment. For reasons set forth in connection with Violation Four, the formation of such a relationship is repugnant to the obligations of the profession.

The Board concludes that public health, safety, and welfare imperatively require that the Respondent's license be suspended pending final resolution of proceedings against him. The danger of permitting the Respondent to continue to provide professional services to C.R. is manifest. As well, in view of the nature of Respondent's unprofessional, personal relationship with one client, C.R., the Board must ensure that he be prevented from engaging in similar relationships with other clients. The Board is also mindful that Respondent provided a deceptive opinion

letter to another professional (exhibit 1), and appeared to prepare to deceive a court of law by disguising the source of bail for a client.

Vermont law requires that unprofessional charges be filed promptly with Respondent being afforded a prompt hearing. At any merits hearing in this matter, prosecutor will bear the burden of proving unprofessional conduct. The Findings and Conclusions in the summary suspension phase will not absolve the prosecution or Respondent from producing or challenging relevant evidence at a merits hearing. The Findings of Fact and Conclusions of Law at a contested hearing will be based exclusively on the evidence admitted at that hearing.

Order

The Request for Summary Suspension is **Granted**. Respondent's license is hereby summarily suspended pending proceedings for revocation or other action. These proceedings shall be promptly instituted and determined. 3 V.S.A. § 814(c).

It is SO ORDERED this September 29, 2021 ___ day of September 2021

E-SIGNED by Tammy Austin
on 2021-09-29 07:52:32 EDT

Board of Allied Mental Health Practitioners
By: Tammy Austin, Chair

Date of Entry 10/1/21

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:

Adam Stark

License No. 068.0000681

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Docket No. 2021-103

REQUEST FOR SUMMARY SUSPENSION

NOW COMES the State of Vermont and hereby requests summary suspension of the Licensed Clinical Mental Health Counselor license of Respondent Adam Stark:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the “Board”) has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapters 65 and 78; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation (“OPR”).
2. The Board of Allied Mental Health is authorized by 3 V.S.A. §814 to summarily suspend the license of a Licensed Clinical Mental Health Counselor when it finds the public health, safety, or welfare imperatively requires emergency action.

Statement of Facts

3. Adam Stark (the “Respondent”) of Brattleboro, Vermont is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor (“LCMHC”) under license number 068.0000681. This license was originally issued on January 19, 2006 and expires on January 31, 2023.
4. Respondent is also licensed by the State of Vermont as an Alcohol and Drug Counselor (“LADC”) under license number 151.0127609. Respondent’s Alcohol and Drug Counselor license was originally issued in 2005 by the Vermont Alcohol and Drug Addiction Certification Board. OPR issued the LADC license on January 24, 2017 and it expires on January 31, 2023.
5. During the relevant time, Respondent maintained an independent counseling practice under the name Open Circle Counseling located in Brattleboro, Vermont.
6. On August 16, 2021, Respondent wrote a letter to a New Hampshire Public Defender who was representing a female, C.R. (“Client”), in connection with criminal charges pending in New Hampshire.

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7. Respondent's August 16, 2021 letter is on letterhead from his independent practice, Open Circle Counseling, and he signed the letter Adam Stark, MA LCMHC LADC.
8. In his August 16, 2021 letter, Respondent writes on behalf of Client and states his counseling work with Client began 6/14/2021 and continued through 8/6/2021.
9. Respondent states in his letter that he has been treating Client for depression, anxiety, post-traumatic stress, and substance use-heroin and cocaine
10. Respondent states in his letter that Respondent's "participation in therapy has been positive. Her progress has been slight as she relapsed, and was arrested."
11. Client was arrested in Massachusetts on or about August 6, 2021 on a New Hampshire arrest warrant.
12. On or about August 12, 2021, Respondent posted bail for Client in the amount of \$5,000.00.
13. Client was required to report to New Hampshire authorities on August 13, 2021.
14. When Client reported to New Hampshire authorities, she was incarcerated at the Cheshire County House of Corrections.
15. Between August 13, 2021 and August 20, 2021, Client and Respondent engaged in numerous phone calls, which were recorded, beginning from when Client arrived in booking in New Hampshire.
16. In their first call on August 13, 2021, Respondent and Client both stated "I love you" to each other and Respondent referred to Client as "honey" and "sweetie."
17. Client thanked Respondent "for everything" and stated "Please keep my stuff secured in the safe spot," which Respondent agreed to do.
18. Based on the recorded calls, Respondent and Client believed Client would be released on August 16, 2021 and they planned for Respondent to pick her up from jail when she was released.
19. Respondent and Client planned to go swimming together when Respondent picked Client up from jail on August 16, 2021.
20. Respondent planned to bring a bathing suit for Client when he picked her up from jail and asked her what size she wore.
21. Client informed Respondent she was not able to receive Methadone in jail.

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22. On August 15, 2021, Client again asked Respondent about “her stuff” that she left with him, whether he had it, and asked him to bring it with him when he picked her up from jail on August 16, 2021.
23. On August 15, 2021, Respondent referred to Client as “sweetie,” “hon,” told Client he loved her, and said “hugs and kisses.”
24. Client had a hearing on August 16, 2021 and Client’s bail was set at \$5,000.00.
25. On August 16, 2021 after Client’s hearing, Respondent and Client discussed Respondent’s efforts to get the bail money he posted in Massachusetts back so that he could post bail to get Client out of jail from New Hampshire.
26. On August 18, 2021, Client told Respondent she did not think he would be allowed to bail her out of jail because he is her counselor.
27. Respondent and Client discussed Respondent arranging with one of Client’s friends to use Respondent’s money to bail Client out, and Respondent agreed to call Client’s friend.
28. On August 19, 2021, Respondent informed Client that Respondent’s attorney had received a call from the Office of Professional Regulation about Respondent’s relationship with Client and the fact that Respondent posted bail for Client.
29. In the August 19, 2021 call, Respondent and Client discussed how OPR knew that Respondent posted bail for Client.
30. Respondent and Client discussed how they never had sexual intercourse.
31. Respondent suggested the possibility that Client should go to Respondent’s attorney’s office with Respondent to discuss OPR’s investigation of this case and also Client calling Respondent’s lawyer to discuss the case.
32. Respondent and Client discussed Respondent bailing Client out the next day, on August 20, 2021.
33. The State has no information as of this date whether Respondent did, in fact, bail Client out of jail.
34. Respondent is currently the subject of charges pending at OPR against his LCMHC and LADAC licenses in Docket Numbers 2021-66, 67, 68, 29, 70, 71, 72, 73, 74, 75, 76, and 77.

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35. The charges against Respondent, filed by the State in May 2021, arise from multiple complaints regarding Respondent's unprofessional conduct including: trading cash for a client's Vermont Electronic Benefits Card and refusing to return the EBT card; entering a client's home uninvited; conducting therapy sessions in his car while driving in public places; having a client sit on his lap while he rubbed her leg; engaging in personal relationships with clients; violating privacy laws; violating emergency Executive Order No. 01-20 and its amendments; engaging in a multi-year relationship with a sex worker who lived with Respondent that included Respondent paying money for sex, helping the individual inject heroin, and financially manipulating the individual for his personal benefit and other conduct.
36. The final hearings in the above-referenced Dockets will be held in February 2022.
37. Respondent's LADAC and LCMHC licenses are currently active and unencumbered.

Violation One: 26 V.S.A. §3271(a)(6) Entering into an additional relationship with a client that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations.

38. The State re-alleges and incorporates Paragraphs 3 through 37 above.
39. Vermont law prohibits a licensed clinical mental health counselor from entering an additional relationship with a client that might impair the counselor's objectivity or otherwise interfere with the counselor's professional obligations.
40. Paragraphs 3 through 37 demonstrate that Respondent entered an additional relationship with Client that impaired Respondent's objectivity and interfered with Respondent's professional obligations.
41. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(15).

Violation Two: 3 V.S.A. §129a(a)(26) Failing to maintain professional boundaries.

42. The State re-alleges and incorporates Paragraphs 3 through 37 above.
43. Vermont law requires a licensed clinical mental health counselor to maintain professional boundaries.
44. Paragraphs 3 through 37 demonstrate that Respondent failed to maintain professional boundaries with Client.

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45. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(26).

Violation Three: 3 V.S.A. §129a(b)(1) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (1) Performance of unsafe or unacceptable patient or client care.

46. The State re-alleges and incorporates Paragraphs 3 through 37 above.
47. Vermont law requires a licensed clinical mental health counselor to perform safe and acceptable client care.
48. Paragraphs 3 through 37 demonstrate that Respondent failed to perform safe and acceptable client care by engaging in a personal relationship with Client that included posting Client's bail in Massachusetts and making efforts to get Client released from jail in New Hampshire; keeping Client's "stuff" or personal belongings; saying "I love you" to Client and referring to Client in endearing and intimate terms such as "sweetie," "honey," "hon;" and asking Client to aid in his legal defense in OPR proceedings against Respondent's LADAC and LCMHC licenses.
49. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Violation Four: 3 V.S.A. §129a(b)(2) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) Failure to conform to essential standards of acceptable and prevailing practice

50. The State re-alleges and incorporates Paragraphs 3 through 37 above.
51. Vermont law requires licensed clinical mental health counselors to conform to the essential standards of acceptable and prevailing practice.
52. The Administrative Rules of the Board of Allied Mental Health Practitioners provide that the ethical codes of the National Board for Certified Counselors ("NBCC") and the American Counseling Association ("ACA") establish the standard of practice and fitness within the Allied Mental Health professions. *See* Administrative Rule 6.6 for the Board of Allied Mental Health Practitioners.

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53. Essential standards of acceptable and prevailing practice for Licensed Clinical Mental Health Counselors in Vermont prohibit counselors from engaging in a personal virtual relationship with individuals with whom they have a current counseling relationship (e.g., through social and other media). *See* ACA Code of Ethics, Standard A.5.e.
54. Paragraphs 3 through 37 demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by engaging in a personal virtual relationship with Client.
55. Essential standards of acceptable and prevailing practice for Licensed Clinical Mental Health Counselors in Vermont require counselors to “consider the risks and benefits of extending current counseling relationships beyond conventional parameters....In extending these boundaries, counselors take appropriate professional precautions such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired and no harm occurs.” *See* ACA Code of Ethics, Standard A.6.b.
56. Paragraphs 3 through 37 demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by extending, without considering the risks to Client and taking appropriate professional precautions, the boundaries of his professional relationship with Client to include posting Client’s bail in Massachusetts and making efforts to get Client released from jail in New Hampshire; keeping Client’s “stuff” or personal belongings; saying “I love you” to Client and referring to Client in endearing and intimate terms such as “sweetie,” “honey,” “hon;” asking Client to aid in his legal defense in OPR proceedings against Respondent’s LADAC and LCMHC licenses; and engaging in a personal relationship with Client.
57. Essential standards of acceptable and prevailing practice for Licensed Clinical Mental Health Counselors in Vermont provide that “[t]he primary responsibility of counselors is to respect the dignity and promote the welfare of clients.” *See* ACA Code of Ethics, Standard A.1.a.
58. Paragraphs 3 through 37 demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by disregarding Client’s dignity and welfare by engaging in some type of personal relationship with Client that involved Respondent bailing Client out of jail; keeping Client’s “stuff” safe; discussing bringing Client a bathing suit and going swimming; informing Client about the investigation into his unprofessional conduct with Client and asking Client to aid in his legal defense; and telling Client “hugs and kisses” and that he loved her.
59. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

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Violation Five: 3 V.S.A. §129a(a)(15) Failure to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

60. The State re-alleges and incorporates Paragraphs 3 through 37 above.
61. Vermont law requires a licensed clinical mental health counselor to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.
62. Paragraphs 3 through 37 demonstrate that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment was necessary to avoid action repugnant to the obligations of the profession by engaging in a personal relationship with Client, posting Client's bail in Massachusetts and making efforts to get her released from jail in New Hampshire, and asking Client to aid in his legal defense in OPR proceedings against Respondent's LADAC and LCMHC licenses.
63. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(15).

Relief Requested

64. Members of the public, patients, and potential patients have no way of learning of Respondent's dangerous and egregious conduct and will remain unprotected during the pendency of these proceedings. The facts as set forth above establish that in order to protect the public health, safety, and/or welfare of the people of the State of Vermont, emergency action is imperative.

WHEREFORE, the State of Vermont respectfully requests that pursuant to 3 V.S.A. §814(c), Respondent's LCMHC license, number 068.0000681, be summarily suspended, pending hearing on the merits.

DATED this 9th day of September, 2021.

STATE OF VERMONT
SECRETARY OF STATE

By: /s/ Jennifer B. Colin
Jennifer B. Colin
Prosecuting Attorney
(802)522-8987
Jennifer.Colin@vermont.gov

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**STATE OF VERMONT
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BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:

Adam Stark

License No. 068.0000681

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2. The Board of Allied Mental Health is authorized by 3 V.S.A. §814 to summarily suspend the license of a Licensed Clinical Mental Health Counselor when it finds the public health, safety, or welfare imperatively requires emergency action.

Statement of Facts

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24. Client had a hearing on August 16, 2021 and Client’s bail was set at \$5,000.00.
25. On August 16, 2021 after Client’s hearing, Respondent and Client discussed Respondent’s efforts to get the bail money he posted in Massachusetts back so that he could post bail to get Client out of jail from New Hampshire.
26. On August 18, 2021, Client told Respondent she did not think he would be allowed to bail her out of jail because he is her counselor.
27. Respondent and Client discussed Respondent arranging with one of Client’s friends to use Respondent’s money to bail Client out, and Respondent agreed to call Client’s friend.
28. On August 19, 2021, Respondent informed Client that Respondent’s attorney had received a call from the Office of Professional Regulation about Respondent’s relationship with Client and the fact that Respondent posted bail for Client.
29. In the August 19, 2021 call, Respondent and Client discussed how OPR knew that Respondent posted bail for Client.
30. Respondent and Client discussed how they never had sexual intercourse.
31. Respondent suggested the possibility that Client should go to Respondent’s attorney’s office with Respondent to discuss OPR’s investigation of this case and also Client calling Respondent’s lawyer to discuss the case.
32. Respondent and Client discussed Respondent bailing Client out the next day, on August 20, 2021.
33. The State has no information as of this date whether Respondent did, in fact, bail Client out of jail.
34. Respondent is currently the subject of charges pending at OPR against his LCMHC and LADAC licenses in Docket Numbers 2021-66, 67, 68, 29, 70, 71, 72, 73, 74, 75, 76, and 77.

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35. The charges against Respondent, filed by the State in May 2021, arise from multiple complaints regarding Respondent's unprofessional conduct including: trading cash for a client's Vermont Electronic Benefits Card and refusing to return the EBT card; entering a client's home uninvited; conducting therapy sessions in his car while driving in public places; having a client sit on his lap while he rubbed her leg; engaging in personal relationships with clients; violating privacy laws; violating emergency Executive Order No. 01-20 and its amendments; engaging in a multi-year relationship with a sex worker who lived with Respondent that included Respondent paying money for sex, helping the individual inject heroin, and financially manipulating the individual for his personal benefit and other conduct.
36. The final hearings in the above-referenced Dockets will be held in February 2022.
37. Respondent's LADAC and LCMHC licenses are currently active and unencumbered.

Violation One: 26 V.S.A. §3271(a)(6) Entering into an additional relationship with a client that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations.

38. The State re-alleges and incorporates Paragraphs 3 through 37 above.
39. Vermont law prohibits a licensed clinical mental health counselor from entering an additional relationship with a client that might impair the counselor's objectivity or otherwise interfere with the counselor's professional obligations.
40. Paragraphs 3 through 37 demonstrate that Respondent entered an additional relationship with Client that impaired Respondent's objectivity and interfered with Respondent's professional obligations.
41. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(15).

Violation Two: 3 V.S.A. §129a(a)(26) Failing to maintain professional boundaries.

42. The State re-alleges and incorporates Paragraphs 3 through 37 above.
43. Vermont law requires a licensed clinical mental health counselor to maintain professional boundaries.
44. Paragraphs 3 through 37 demonstrate that Respondent failed to maintain professional boundaries with Client.

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45. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(26).

Violation Three: 3 V.S.A. §129a(b)(1) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (1) Performance of unsafe or unacceptable patient or client care.

46. The State re-alleges and incorporates Paragraphs 3 through 37 above.
47. Vermont law requires a licensed clinical mental health counselor to perform safe and acceptable client care.
48. Paragraphs 3 through 37 demonstrate that Respondent failed to perform safe and acceptable client care by engaging in a personal relationship with Client that included posting Client's bail in Massachusetts and making efforts to get Client released from jail in New Hampshire; keeping Client's "stuff" or personal belongings; saying "I love you" to Client and referring to Client in endearing and intimate terms such as "sweetie," "honey," "hon;" and asking Client to aid in his legal defense in OPR proceedings against Respondent's LADAC and LCMHC licenses.
49. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Violation Four: 3 V.S.A. §129a(b)(2) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) Failure to conform to essential standards of acceptable and prevailing practice

50. The State re-alleges and incorporates Paragraphs 3 through 37 above.
51. Vermont law requires licensed clinical mental health counselors to conform to the essential standards of acceptable and prevailing practice.
52. The Administrative Rules of the Board of Allied Mental Health Practitioners provide that the ethical codes of the National Board for Certified Counselors ("NBCC") and the American Counseling Association ("ACA") establish the standard of practice and fitness within the Allied Mental Health professions. *See* Administrative Rule 6.6 for the Board of Allied Mental Health Practitioners.

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53. Essential standards of acceptable and prevailing practice for Licensed Clinical Mental Health Counselors in Vermont prohibit counselors from engaging in a personal virtual relationship with individuals with whom they have a current counseling relationship (e.g., through social and other media). *See* ACA Code of Ethics, Standard A.5.e.
54. Paragraphs 3 through 37 demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by engaging in a personal virtual relationship with Client.
55. Essential standards of acceptable and prevailing practice for Licensed Clinical Mental Health Counselors in Vermont require counselors to “consider the risks and benefits of extending current counseling relationships beyond conventional parameters....In extending these boundaries, counselors take appropriate professional precautions such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired and no harm occurs.” *See* ACA Code of Ethics, Standard A.6.b.
56. Paragraphs 3 through 37 demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by extending, without considering the risks to Client and taking appropriate professional precautions, the boundaries of his professional relationship with Client to include posting Client’s bail in Massachusetts and making efforts to get Client released from jail in New Hampshire; keeping Client’s “stuff” or personal belongings; saying “I love you” to Client and referring to Client in endearing and intimate terms such as “sweetie,” “honey,” “hon;” asking Client to aid in his legal defense in OPR proceedings against Respondent’s LADAC and LCMHC licenses; and engaging in a personal relationship with Client.
57. Essential standards of acceptable and prevailing practice for Licensed Clinical Mental Health Counselors in Vermont provide that “[t]he primary responsibility of counselors is to respect the dignity and promote the welfare of clients.” *See* ACA Code of Ethics, Standard A.1.a.
58. Paragraphs 3 through 37 demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by disregarding Client’s dignity and welfare by engaging in some type of personal relationship with Client that involved Respondent bailing Client out of jail; keeping Client’s “stuff” safe; discussing bringing Client a bathing suit and going swimming; informing Client about the investigation into his unprofessional conduct with Client and asking Client to aid in his legal defense; and telling Client “hugs and kisses” and that he loved her.
59. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

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Violation Five: 3 V.S.A. §129a(a)(15) Failure to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

60. The State re-alleges and incorporates Paragraphs 3 through 37 above.
61. Vermont law requires a licensed clinical mental health counselor to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.
62. Paragraphs 3 through 37 demonstrate that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment was necessary to avoid action repugnant to the obligations of the profession by engaging in a personal relationship with Client, posting Client's bail in Massachusetts and making efforts to get her released from jail in New Hampshire, and asking Client to aid in his legal defense in OPR proceedings against Respondent's LADAC and LCMHC licenses.
63. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(15).

Relief Requested

64. Members of the public, patients, and potential patients have no way of learning of Respondent's dangerous and egregious conduct and will remain unprotected during the pendency of these proceedings. The facts as set forth above establish that in order to protect the public health, safety, and/or welfare of the people of the State of Vermont, emergency action is imperative.

WHEREFORE, the State of Vermont respectfully requests that pursuant to 3 V.S.A. §814(c), Respondent's LCMHC license, number 068.0000681, be summarily suspended, pending hearing on the merits.

DATED this 9th day of September, 2021.

STATE OF VERMONT
SECRETARY OF STATE

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